



Appeal Decision

by L McKay MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 3 September 2026

Appeal Ref: 6012775

Flat 3, 49 Madeira Park, Royal Tunbridge Wells, Kent, TN2 5SY

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs Dogan & Aycan Delman against the decision of Tunbridge Wells Borough Council.
 - The application Ref is 26/00832/FULL.
 - The development proposed is described as: 'Replacement of 2 windows at first floor level from single-glazed white timber frames to double-glazed uPVC for greater energy efficiency and security. To the front elevation is a bay window with 2 openable casements and a fixed central direct glaze. There are 3 upper fanlights with leaded lights. To the rear, the kitchen window has 2 openable casements with fanlights above all with plain clear glazing. The replaced windows are of the same configuration, position of glazing bars and openable parts as the original. (26/00015/OPDEV).
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Decision

1. The appeal is dismissed insofar as it relates to the replacement of 1 window at first floor level on the front elevation.
2. The appeal is allowed insofar as it relates to the replacement of 1 window at first floor level on the rear elevation and planning permission is granted for replacement of 1 window at first floor level on the rear elevation at Flat 3, 46 Madeira Park, Royal Tunbridge Wells, Kent, TN2 5SY in accordance with the terms of the application, Ref 26/00832/FULL, and the plans submitted with it, so far as relevant to that part of the development hereby permitted.

Preliminary Matters

3. I saw at my site visit that the development had already taken place and appeared to accord with the plans before me. There is no suggestion that this breach of planning control was intentional. I have dealt with the appeal on that basis.
4. The most recent iteration of the National Planning Policy Framework (Framework) was published in August 2026. The main parties have provided comments on this change in policy and I have had regard to these when considering the appeal.

Main Issue

5. The main issue is the effect of the development on the character and appearance of the host building and the Madeira Park and Warwick Park Conservation Area (CA).

Reasons

6. The Madeira Park and Warwick Park conservation area appraisal and management plan sets out that Madeira Park is a good example of late Victorian/Edwardian residential development. This part of the CA derives

considerable significance from the consistency in design and scale with variety and visual interest added by variation in detailing and materials. Sloping sites create interest and views across roofscapes from higher areas also contribute.

7. I saw that timber windows are prevalent in the area. Most were of relatively simple form and profile but with detailing, including leaded lights, which are typical of the timeframe of these dwellings and contribute positively to the CA.
8. The design and scale of No 49 is typical of this part of the CA, with decorative detailing, timber and render features, bay and oriel windows creating articulation and visual interest. It is characteristic of properties in this area and makes a positive contribution to the CA.
9. The property is split into flats. The front windows of the ground floor flats and a rear door are uPVC, benefitting from planning permission. Flat 3 occupies one side of the building at first floor level. It has an oriel window to the front and a casement window to the rear, both of which have been replaced with uPVC windows, the subject of this appeal. The remaining front and rear windows of the property appear to be white painted timber with square frames. Bay and oriel windows to the front and rear have leaded top lights and projecting detailing on the transoms while other windows are much plainer casements.
10. The front oriel window is clearly visible from the road above the front hedge and is seen together with the other bay window at first-floor level. Although they are set at different levels and are different sizes, these two windows previously shared detailing which gave them a visual coherence, including the pitched roof above and, until replaced, the unifying design of the windows. Previously, seen together they contributed positively to the appearance of the host building and its contribution to the CA.
11. Unlike the first floor windows, the uPVC front ground floor windows are screened from view from the road. Due to the small, narrow front garden they are not readily visible together with the first floor windows. Consequently, their different appearance and materials did not detract from the previous coherence of the front elevation in the street scene.
12. Before it was replaced, the front oriel window was timber framed with the simple profile, transom detail and leaded light found on the opposite bay at first floor. The replacement windows have the same opening arrangement, configuration, position of glazing bars and leaded lights as the previous windows. However, the frames are noticeably different in appearance, with a different profile and trickle vents. They lack the recessed inner frame and projecting transom detail that is characteristic of the timber windows elsewhere on the property. The differences are clearly evident from the road, where the oriel window is seen together with the timber windows above and to the side on the rest of the visible front elevation. This difference detracts from the appearance of the host building, and diminishes its contribution to the CA.
13. The rear of the property is not publicly visible, although it can be seen from the communal parking area. The frame thickness and profile of the first-floor window of Flat 3 are different to the previous timber window in the same way as on the oriel window. However, in this case the rear window is seen together with the similarly designed rear door below and the plain casement above. Given their simple design, the differences in the appearance of these three openings are not easy to

distinguish. Consequently, and noting the Council's approach to replacement of other windows in the building where not publicly visible, I find that this window does not harm the character or appearance of the host building or the CA.

14. Consequently, I find that the front window harms the appearance of the host building and that of the CA. Accordingly, that part of the appeal scheme conflicts with Policies STR8, H11, EN1 and EN4 of the Tunbridge Wells Borough Local Plan 2025. These policies seek to ensure that development preserves, and where possible enhances, the significance of designated heritage assets and is compatible with the character and appearance of the existing building.
15. For the reasons above, the rear window preserves the character and appearance of the host building and the CA and therefore does not conflict with those Local Plan Policies. As it is separate and severable from the front window, I am able to allow that part of the scheme.
16. The front window harms the appearance of the CA and therefore harms its significance. The degree of harm to the CA as a whole would be slight, however having regard to Policy HE6 of the Framework, any harm to a designated heritage asset is a matter of considerable importance and weight. The Framework requires that any harm to significance should be weighed against the public benefits resulting from the proposal.
17. The appellant sets out that changing from single glazed to double glazed windows has improved energy efficiency and security. Security is a private benefit to the occupants, however improvements to energy efficiency help to deal with the impacts of climate change. This is therefore a public benefit and a matter which the Framework affords substantial weight.
18. In this case, there is no information before me to quantify the energy and thermal efficiency improvements that have resulted from the replacement windows. Furthermore, it has not been demonstrated that equivalent improvements were not achievable through more sympathetic windows, particularly as I saw other double glazed timber framed windows nearby. Moreover, given that I have found no harm as a result of the rear window, I can allow that part of the development and, therefore, retain part of the benefit.
19. Accordingly, the benefit to energy efficiency resulting from the front window is a matter to which I give only limited weight. This is not sufficient to outweigh the harm to the CA which I have identified. Therefore, that part of the development conflicts with the heritage policies of the Framework, and the combination of the public and private benefits are substantially outweighed by the adverse effects.

Conclusion

20. The front window has caused harm and conflicts with the development plan. There are no material considerations, including the Framework and the benefits of the development, which justify granting permission for this element. However, there is no harm from the rear window, and I can issue a split decision allowing that part of the development. No conditions are necessary as the window is already in place.

L McKay

INSPECTOR